

ASCII MASTER FLOW – PANEL 1/9: Compare functions and contexts, not country labels

ROOT QUESTION

Why does the same constitutional institution behave differently after transplantation?

COMPARATIVE METHOD

function -> source model -> Indian text -> social/federal context
-> judicial interpretation -> political practice -> consequence.

AXES

codification/rigidity | executive-legislative relation | federal distribution
| rights/remedies | courts | amendment | emergency | elections | accountability.

TRAP

"borrowed from" without adaptation and purpose is a memory list, not constitutional analysis.

ASCII MASTER FLOW – PANEL 2/9: Written, unwritten, rigid and flexible constitutional forms

UK

uncodified: statutes + common law + conventions + authoritative practice;
politically flexible under parliamentary sovereignty.

USA

codified, supreme and comparatively rigid.

INDIA

codified and supreme; amendment routes range from simple majority
to special majority and State ratification.

SOUTH AFRICA / GERMANY

written transformative/post-authoritarian constitutions with entrenched principles.

CONTROL

written != rigid; unwritten != lawless; flexibility and supremacy are separate variables.

ASCII MASTER FLOW – PANEL 3/9: Parliamentary, presidential and semi-presidential executives

INDIA / UK

parliamentary fusion | collective responsibility | confidence | nominal/formal head distinction.

USA

presidential separation | fixed tenure | separately elected executive | legislative checks.

FRANCE

semi-presidential dual executive | directly elected President | responsible Prime Minister
| cohabitation when parliamentary majority differs.

GERMANY

constructive vote of no confidence strengthens parliamentary stability.

SWITZERLAND

collegial Federal Council and direct-democratic context.

TRAP

Indian President != US President; parliamentary fusion != absence of checks.

ASCII MASTER FLOW – PANEL 4/9: Federal, unitary and hybrid design with upper houses

USA

coordinate federalism | State equality in Senate | dual citizenship/court features.

CANADA

federal with strong-centre and residuary federal power influences.

AUSTRALIA

federal division + strong elected Senate + concurrent/trade inspirations.

INDIA

Union/State/Concurrent Lists | Union residuary power | single citizenship
| integrated judiciary | emergency centralisation | asymmetry.

UPPER HOUSES

Rajya Sabha population-weighted, indirectly elected and unequal;

US Senate State-equal and appointment-confirming;

German Bundesrat represents Land governments.

TRAP

bicameral label does not imply identical federal representation.

ASCII MASTER FLOW – PANEL 5/9: Supremacy, judicial review and constitutional courts

UK
parliamentary sovereignty with rights and devolution qualifications.

USA

written supremacy + diffuse judicial review through ordinary courts.

GERMANY

specialised Federal Constitutional Court.

INDIA

Supreme Court + High Courts exercise diffuse review, writs and federal adjudication;
Parliament remains Constitution-limited.

CASES

Kesavananda Bharati (1973) -> basic structure.

Minerva Mills (1980) -> limited amendment and FR-DPSP harmony.

First Judges Case (1981) -> initial executive primacy.

Second Judges Case (1993) -> collegium and judicial primacy.

Third Judges Case (1998) -> collegium consultation enlarged.

Fourth Judges Case (2015) -> judicial-independence control of NJAC.

S.R. Bommai (1994) -> federalism and secularism as basic-structure controls.

TRAP

Indian judicial review is not borrowed as an unlimited US copy.

ASCII MASTER FLOW – PANEL 6/9: Rights, due process and socio-economic directives

USA

rights tradition + due process + strong judicial enforcement.

INDIA

Fundamental Rights + Article 32/226 remedies

+ Directive Principles + duties + reasonable-restriction architecture.

IRELAND

directive-principle inspiration, adapted to Indian transformative governance.

SOUTH AFRICA

express justiciable socio-economic rights and proportionality context.

JAPAN / INDIA

"procedure established by law" textual influence.

Maneka Gandhi (1978) adds fairness, non-arbitrariness and reasonableness.

TRAP

Indian DPSPs are not operationally identical to Ireland;

procedure is not post-Maneka Gandhi (1978) formalism.

ASCII MASTER FLOW – PANEL 7/9: Amendment, emergency and electoral design

AMENDMENT

UK political flexibility | USA high rigidity | India multi-track Article 368
| Germany eternity clause | Switzerland referendum routes.

INDIAN CONTROL

Kesavananda Bharati (1973) basic structure;
I.R. Coelho (2007) post-1973 Ninth Schedule review.

EMERGENCY

India: Articles 352/356/360 with 44th-Amendment safeguards and review.
Germany: post-authoritarian safeguards.
France: distinct presidential emergency design.

ELECTIONS

India/UK FPTP legislatures | US electoral college Presidency
| France two-round Presidency | Germany mixed-member
| Switzerland referendums/initiatives.

TRAP

electoral system follows office and party-system context; no model is universally superior.

ASCII MASTER FLOW – PANEL 8/9: Secularism and accountability institutions

SECULARISM

India: principled engagement, equality and reform.

USA: non-establishment + free exercise.

France: laicite and republican public sphere.

Germany: cooperative church-State arrangements.

ACCOUNTABILITY

India CAG: constitutional Westminster adaptation.

Lokpal: statutory ombudsman, not constitutional court.

Finance Commission: periodic expert federal-transfer body.

ECI: central constitutional election management.

COMPARATIVE LESSON

appointment, jurisdiction, remedy and political context matter more than institutional label.

ASCII MASTER FLOW – PANEL 9/9: India's hybrid adaptation and UPSC synthesis

INDIAN HYBRID

British responsible government + written supremacy
| US rights/review + Canadian strong-centre federation
| Irish directives + Australian federal techniques
| German emergency lessons + South African transformative comparison.

PRELIMS FIREWALL

uncodified != unwritten | parliamentary != legislative supremacy in India
| federal != equal upper-house seats | President titles != powers
| borrowed != copied | DPSP != enforceable right | Rajya Sabha != US Senate.

MAINS MATRIX

design -> commonality -> difference -> reason -> consequence -> qualification.

VERDICT

India's Constitution is original in synthesis: foreign techniques were re-engineered for democratic responsibility, social transformation, federal diversity and judicially limited power.